

Tentative Rulings for August 5, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG05610 *Thompson v. Batiz* is continued to Tuesday, November 17, 2026 at 3:30 p.m. in Department 502.

25CECG03002 *Adam McCormick v. Henley Pacific LLC* is continued to Wednesday, August 19, 2026, at 3:30 p.m. in Department 502.

25CECG05631 *Patricia Avila v. George Nicholson* is continued to Wednesday, September 9, 2026, at 3:30 p.m. in Department 502.

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Tentative Rulings for Department 502

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Tentative Ruling

Re: **Ramirez v. Creative Alternatives School et al.**
Superior Court Case No. 25CECG05129

Hearing Date: August 5, 2026 (Dept. 502)

Motion: Defendants' Demurrer to the First Amended Complaint and Defendants' Motion to Strike

Tentative Ruling:

To continue the demurrer and motion to strike to Wednesday, September 23, 2026 at 3:30 p.m. in Department 502. Plaintiff S.A. is a minor and must have counsel in this matter. The motions are continued in order to give the minor an opportunity to obtain counsel. Counsel may file an amended complaint no later than September 9, 2026.

The parties may file briefing addressing whether the court should strike the First Amended Complaint in its entirety should plaintiff S.A. fail to obtain counsel. Any briefing on this issue is to be filed and served no later than September 9, 2026 and shall not exceed 7 pages.

Explanation:

Meriah Ramirez has filed a complaint in propria persona on behalf of herself and the minor, S.A. While the Court did sign orders appointing her as the Guardian Ad Litem for the minor on December 4, 2025, a non-attorney cannot act in propria persona to represent minors, even where that person has been appointed as their Guardian Ad Litem. (Bus. & Prof. Code, § 6125; *J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 965-968.) As such, while Meriah Ramirez may represent herself, counsel must be obtained for the minor child.

The court continues the instant motions a second time in order to allow minor plaintiff S.A. an opportunity obtain counsel. In the event counsel is obtained, counsel may file an amended complaint. As there is no cause of action for plaintiff Meriah Ramirez, the court intends to strike the First Amended Complaint in its entirety should the minor, S.A., fail to retain counsel.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-4-26
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **Lynn Goode v. Volkswagen Group of America, Inc.**
Superior Court Case No. 25CECG00792

Hearing Date: August 5, 2026 (Dept. 502)

Motion: by Plaintiffs for Attorneys' Fees

Tentative Ruling:

To grant in the reduced amount of \$12,358.50. Payment shall be made by defendant Volkswagen Group of America, Inc. to Quill & Arrow, LLP within 30 days of the clerk's service of the minute order.

Explanation:

A prevailing buyer in an action under the Song-Beverly Act "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) "A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." ' ' ' (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.' (Serrano v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817 [lodestar applies to Song-Beverly litigation].) The lodestar consists of "the number of hours *reasonably expended* multiplied by the *reasonable hourly rate*...." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095, italics added; Ketchum v. Moses (2001) 24 Cal.4th 1122, 1134.) If the time expended is not reasonable, the court must take that into account and award less than requested. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470.)

Here, Plaintiffs Lynn Avery Goode and Starr Shari Goode ("Plaintiffs") present that they are the prevailing party, and this assertion is not disputed by Defendant Volkswagen Group of America, Inc. ("Defendant").

Plaintiffs seek a lodestar \$15,117.00, with an additional \$3,002.00 for additional work in connection to this motion and anticipated hearing. Plaintiffs request a multiplier of 1.25. Defendant largely argues that the hours billed were not reasonably incurred and that the billing rates are high. Defendant also argues a multiplier is unwarranted here, rather that a negative multiplier should be applied.

Reasonable Time Expended

Defendant does not identify specific billing entries as excessive, but rather challenges types of billing entries (e.g. discovery, correspondence). Upon review of the billing records, it does not appear that an excessive amount of work was billed. (Jacobson Decl., ¶ 71, Exh. 27.) The attached time records reflect mostly reasonable billing entries.

Defendant argues that 0.2 hours by Mr. Kohanoff are clerical and should not be billed. The entries are on December 16, 2025, when Mr. Kohanoff dealt with a technological service issue with an administrative assistant. "[P]urely clerical or secretarial tasks should not be billed ..., regardless of who performs them." (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288.) This time will be stricken.

Defendant argues the time claimed for drafting the instant motion is unwarranted. Seven hours does seem excessive for a single motion and declaration, so this time will be reduced to three hours.

Plaintiffs further request \$3,002.00 for drafting the Reply, supporting Declaration, and anticipated appearance at the hearing. The court will grant 2 hours for the Reply and no anticipatory hours for the hearing. The court will award a total of \$550.00 for the Reply and Declaration.

Reasonable Hourly Compensation

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1133.) Ordinarily, "the value of an attorney's time . . . is reflected in his normal billing rate." (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.) Where a party is seeking out-of-town rates, he or she is required to make a "sufficient showing...that hiring local counsel was impractical." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.)

Plaintiffs have made no showing that local counsel practicing "Lemon Law" and Song-Beverly consumer litigation are not available. That counsel's rates have been found reasonable in courts within the greater Los Angeles area is not persuasive. The court intends to award fees based on local rates. Of the Fresno cases referenced in the Reply, only one of them references a single attorney who worked on this case.

The court finds the reasonable value of the services of Derek Chipman is \$400.00 per hour; of Donald Mahnke is \$350.00 per hour; of Joshua Kohanoff is \$350.00 per hour; and of Stephanie Hovhannisyan is \$275.00 per hour.

Lodestar

Based on 30.1 hours of billable time up to the filing of the fees motion, the lodestar is \$10,685.00. Plaintiffs are additionally awarded an additional \$550.00 for the 2 hours for the Reply. The total lodestar is \$11,235.00.

Multiplier

A multiplier enhancement to the lodestar “is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” (*Ketchum, supra*, 24 Cal.4th at p. 1138.) A multiplier may also be applied where the attorney has shown extraordinary skill, resulting in exceptional results. (*Ibid.*; *Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 582.) Courts have substantial discretion to select the factors they deem relevant to their multiplier analysis. (*Lealao v. Beneficial California, Inc.* (2000) 82 Cal.App.4th 19, 40–41.) The factors include: (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 819.)

Plaintiffs seek a multiplier of 1.25. The contingent nature of this action supports a multiplier reduced to 1.1. This results in an additional \$1,123.50.

Total Award of Attorneys' Fees

Attorneys' fees are awarded in the amount of \$12,358.50.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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(Judge's initials) (Date)